

(3) The references in subsection (1) of section one and subsection (1) of section two of this Act to the parties to a marriage include references to the persons who were parties to a marriage which has been dissolved.

(4) This Act does not apply to any cause of action which arose, or would but for the subsistence of a marriage have arisen, before the commencement of this Act.

(5) This Act does not extend to Northern Ireland.

SCHEDULE

Section 3.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
45 & 46 Vict. c. 75.	The Married Women's Property Act, 1882.	Section twelve, except so far as it relates to criminal proceedings. Section twenty-three.
25 & 26 Geo. 5. c. 30.	The Law Reform (Married Women and Tortfeasors) Act, 1935.	In section one, the words "and subject, as respects actions in tort between husband and wife, to the provisions of section twelve of the Married Women's Property Act, 1882".

CHAPTER 49

An Act to restrict the use and possession of air guns, shot guns and similar weapons.

[1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) No person under the age of fourteen shall accept as a gift any air weapon or ammunition for an air weapon, and no person shall give any air weapon or ammunition for an air weapon to any person under that age. Restrictions upon the use and possession of air weapons.

(2) Subject to subsections (4) and (5) of this section, no person under the age of fourteen shall have in his possession any air weapon or ammunition for an air weapon; and no person shall part with the possession of an air weapon or ammunition for an

air weapon to any person under that age, except where, by virtue of subsection (4) or subsection (5) of this section, the possession thereof by that person is not prohibited.

(3) Subject to subsection (5) of this section, no person under the age of seventeen shall have an air weapon in his possession in any public place, except an air gun or air rifle which is so covered with a securely fastened gun cover that it cannot be fired.

(4) Subsection (2) of this section shall not prohibit the possession of an air weapon or any ammunition by any person while under the supervision of a person of or over the age of twenty-one; but where a person has possession of an air weapon on any premises in circumstances where its possession by him would be prohibited but for the preceding provisions of this subsection he shall not use it for firing any missile beyond those premises, and the person under whose supervision he is shall not allow him so to use it.

(5) Subsections (2) and (3) of this section shall not prohibit or restrict the possession of any air weapon or ammunition—

(a) by a member of a club for the time being approved by the Secretary of State for the purposes of this section or of subsection (8) of section four of the Firearms Act, 1937, while engaged as such a member in or in connection with target practice; or

(b) by any person while using the weapon or ammunition at a shooting gallery where the only firearms used are either air weapons or miniature rifles not exceeding .23 calibre.

1 Edw. 8. &
1 Geo. 6. c. 12.

Shot guns.

2. No person under the age of fifteen shall have an assembled shot gun in his possession except while under the supervision of a person of or over the age of twenty-one or while the shot gun is so covered with a securely fastened gun cover that it cannot be fired.

Offences.

3.—(1) Any person who contravenes any of the provisions of this Act shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding twenty pounds or both (or, as the case may be, to be dealt with as for an offence which, if committed by an adult, is punishable on summary conviction with such imprisonment or such a fine or both); and the court by whom he is convicted may make such order as to the forfeiture or disposal of the air weapon or ammunition in respect of which the offence was committed or any firearm or ammunition found in his possession as the court thinks fit.

(2) In any proceedings for an offence under this Act committed by giving or parting with the possession of an air weapon or

ammunition for an air weapon to a person under the age of fourteen it shall be a defence to prove that the person charged with the offence believed the other person to be of or over that age and had reasonable ground for the belief.

4. In this Act—

“air weapon” means such a weapon as is specified in paragraph (b) of subsection (1) of section sixteen of the Firearms Act, 1937 (that is to say, an air gun, air rifle or air pistol not being of a type declared by rules made by a Secretary of State under that Act to be specially dangerous); Interpretation.

“firearm” has the same meaning as in the said Act of 1937;

“premises” includes any land;

“public place” includes any highway and any other premises to which at the material time the public have or are permitted to have access, whether on payment or otherwise; and

“shot gun” means such a weapon as is specified in paragraph (a) of subsection (1) of section sixteen of the said Act of 1937 (that is to say, a smooth-bore gun having a barrel not less than twenty inches in length).

5. In subsection (9) of section four of the said Act of 1937 (which makes with respect to exemption from firearm certificates provision similar to that made by paragraph (b) of subsection (5) of section one of this Act) after the words “other than” there shall be inserted the words “such weapons as are specified in paragraph (b) of subsection (1) of section sixteen of this Act or”. Amendment of
Firearms Act,
1937.

6.—(1) This Act may be cited as the Air Guns and Shot Guns, etc., Act, 1962. Short title and
extent.

(2) This Act does not extend to Northern Ireland.

CHAPTER 50

An Act to require the giving of information by landlords to tenants; and for purposes connected therewith.

[1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where a person (hereafter in this Act referred to as the “tenant”) has a right granted to him or any predecessor in title Provision of
rent books.